

23STCV30834 23STCV30834

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-22

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Case Number: 23STCV30834 Hearing Date: July 22, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Martin Ramirez

;

Plaintiffs,

vs.

California Landmark Group

;

Defendants.

Case No.:

23STCV30384

Hearing Date:

July 22, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION
TO TAX COSTS

MOVING PARTY: Plaintiff Martin Ramirez

RESPONDING
PARTY: Defendant InterSolutions, LLC

Motion to Tax
Costs

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Plaintiff Martin
Ramirez ("Plaintiffs") moves the court for an order striking or taxing
defendant InterSolutions LLC's ("Defendant") Memorandum of Costs.

"A 'verified
memorandum of costs is prima facie evidence of the propriety' of the items
listed on it, and the burden is on the party challenging these costs
to demonstrate that they were not reasonable or necessary." (Adams
v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [internal citation
omitted].)

First, the court
denies Plaintiff's request to strike the Memorandum of Costs in its entirety. Plaintiff
cannot claim inadequate notice of the Memorandum of Costs based on service by
mail because service by mail is expressly authorized by statute. (Code Civ.
Proc., § 1013(a).) Moreover, Plaintiff has shown no prejudice from any claimed

defect in service because he timely filed and served this motion 14 days after the March 20, 2026 Memorandum of Costs was filed. (Proof of Service of Motion filed April 3, 2026.) (Cal. Rules of Court, rule 3.1700(b)(1) [motion to strike or to tax costs must be served and filed within 15 days of service of cost memorandum].) The court also rejects Plaintiff's collateral attack on the issue of Defendant's forfeiture and revival by the Franchise Tax Board. The court comprehensively addressed and ruled on that issue in its March 5, 2026 order on Defendant's Motion for Summary Judgment. (March 5, 2026 Minute Order.)

Second, the court

grants Plaintiff's motion to tax Defendant's request for \$1,695.00 in "Other" costs based on an award of sanctions as an inappropriate item for a memorandum of costs. An award of monetary sanctions may be enforced as a money judgment.

"[M]onetary sanction orders are enforceable through the execution of judgment laws. [Citation.] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction." (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615 [internal citation omitted]; Jones v. Otero (1984) 156 Cal.App.3d 754, 759 ["An order imposing monetary sanctions may be enforced under the Enforcement of Judgments Law"].)

Third, the court denies

Plaintiff's motion to tax Defendant's claimed costs relating to filing and motion fees, service of process fees, court reporter fees, and copy costs.

These costs are expressly recoverable, and Plaintiff has not met his burden to show that these costs were not reasonable or necessary. (Code Civ. Proc., § 1033.5, subd. (a)(1), (4), (11), (13); Adams, supra, 199 Cal.App.4th at p. 1486.)

ORDER

The court grants

in part plaintiff Martin Ramirez's motion to strike or tax costs as follows:

The court orders

that the following costs are taxed from defendant InterSolutions, LLC's Memorandum of costs: \$1,695.00 in "Other" costs (Item 15).

The court orders

that defendant InterSolutions, LLC shall recover from plaintiff Martin Ramirez

costs and expenses in the amount of \$8,564.75

The court orders defendant
InterSolutions, LLC. to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 22, 2026

Robert B. Broadbelt III

Judge of the Superior Court